

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2023-7016

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JANA DAVIES, LICENSE NO. LPC 6140,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (“Board”) and Jana Davies (“Respondent”), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).
2. Respondent was licensed to practice as a professional counselor (“LPC”) in the State of Colorado on June 28, 2011, having been issued license number LPC 6140, which expired on August 31, 2023.
3. This Order is a full and final resolution of case number 2023-7016. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around September 29, 2021, Respondent entered into a Stipulation and Final Agency Order with the Board in case number 2020-6603 (“2021 Order”) and agreed to participate in Peer Assistance Services (“PAS”) for three (3) years and comply with all provisions of the Mental Health Practice Act and all rules and regulations of the Board. The 2021 Order was based two (2) substance abuse related convictions.
 - b. PAS concluded that Respondent is not safe to practice with reasonable skill and safety without treatment and monitoring.
 - c. Respondent failed to contact PAS to sign a contract.
 - d. Respondent failed to respond to the Board or contact PAS.

e. Respondent violated a Board Order.

f. This Order supersedes the 2021 Order and also includes case number 2023-7016.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(b) and (x), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245.

(x) Has failed to respond, in the manner required by the board, to a complaint filed with or by the board against the licensee, registrant, or certificate holder.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby relinquishes her LPC license in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S.

8. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice.

9. Respondent understands that if she applies for licensure as a LPC at any future time, Respondent will be required to comply with all criteria for initial licensure that exist at the time of application(s).

10. Respondent also agrees not to perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. Respondent shall obey all state and federal laws while this Order is in effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

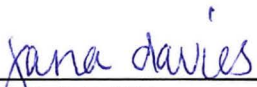
18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

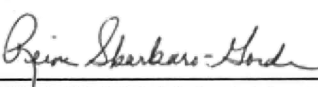
RESPONDENT



JANA DAVIES
LICENSE No. LPC 6140

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELER EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 28th day of November,
2023.